

IN THE SENATE

SENATE BILL NO. 1227

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 70, TITLE 33, IDAHO CODE, TO PROVIDE FOR LEGISLATIVE INTENT, TO PROVIDE FOR DEFINITIONS, TO REQUIRE THE STATE DEPARTMENT OF EDUCATION TO DEVELOP A GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION FRAMEWORK, TO REQUIRE LOCAL SCHOOL DISTRICTS AND PUBLIC CHARTER SCHOOLS TO ADOPT CERTAIN POLICIES, TO REQUIRE THE STATE DEPARTMENT OF EDUCATION TO DEVELOP CERTAIN STANDARDS, ASSESSMENTS, AND PROFESSIONAL DEVELOPMENT, TO PROVIDE FOR PARENTAL AND COMMUNITY ENGAGEMENT, TO PROVIDE FOR PROCUREMENT REQUIREMENTS, AND TO PROVIDE FOR RULEMAKING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 70, Title 33, Idaho Code, and to read as follows:

CHAPTER 70

GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION

33-7001. LEGISLATIVE INTENT. The legislature finds that generative artificial intelligence technologies are rapidly reshaping classroom learning, communication, and workforce expectations. It is the intent of the legislature to safeguard student privacy, protect the role of the educator, promote human-centered learning, increase transparency, and prepare Idaho students for success in an economy increasingly influenced by generative artificial intelligence technologies. It is the intent of the legislature that Idaho's public education system ensures the responsible, ethical, safe, and effective use of generative artificial intelligence tools in teaching, learning, and administration.

33-7002. DEFINITIONS. For the purpose of this chapter:

(1) "Generative artificial intelligence" or "generative AI" means artificial intelligence models that use machine learning and are trained on large volumes of data that can generate new content. When prompted, generative AI can create various outputs, including text, images, videos, computer code, and music. Generative AI does not include artificial intelligence models that have the primary goal of classifying data, such as those used in automated vehicles.

(2) "Generative artificial intelligence in education" means the responsible use of generative artificial intelligence technologies to support instruction, enhance student engagement, personalize learning, improve administrative efficiency, or assist educator decision-making while ensuring that human judgment remains the final authority.

1 33-7003. GENERATIVE ARTIFICIAL INTELLIGENCE IN EDUCATION FRAME-
2 WORK. (1) The state department of education shall develop a statewide
3 generative artificial intelligence in education framework, subject to state
4 board of education approval, for use in K-12 Idaho public schools. The
5 framework shall:

6 (a) Prioritize human-centered oversight, transparency, safety, and
7 data security;

8 (b) Provide guidance on instructional integration, academic in-
9 tegrity, digital citizenship, and responsible student use;

10 (c) Address accessibility, accommodations, and access to generative AI
11 tools; and

12 (d) Serve as the foundation for local school district and public char-
13 ter school policies, professional development, procurement practices,
14 and statewide standards as provided for in the provisions of this chap-
15 ter.

16 (2) The framework shall be reviewed and updated as needed through a
17 process led by the state department of education, which shall convene edu-
18 cation practitioners, industry partners, and workforce representatives to
19 ensure the framework reflects emerging technologies, risks, and best prac-
20 tices.

21 33-7004. POLICY ADOPTION. Each local school district and public char-
22 ter school shall adopt a policy governing the use of generative artificial
23 intelligence by students and employees in school buildings, on school
24 grounds, during school activities, and on school-issued devices. The policy
25 shall:

26 (1) Align with the statewide generative artificial intelligence in ed-
27 ucation framework approved by the state board of education pursuant to the
28 provisions of this chapter;

29 (2) Define appropriate and prohibited uses of generative AI for in-
30 structional, administrative, and communication purposes;

31 (3) Include safeguards for student privacy, data security, accessibil-
32 ity, and academic integrity; and

33 (4) Comply with all applicable state and federal laws, including Idaho
34 student data privacy requirements, the family educational rights and pri-
35 vacy act, the children's internet protection act, and the children's online
36 privacy protection act.

37 33-7005. STANDARDS, ASSESSMENTS, AND PROFESSIONAL DEVELOPMENT. The
38 state department of education, in consultation with educators, industry
39 partners, and technology experts, shall develop and recommend to the state
40 board of education the following:

41 (1) Generative AI literacy standards for K-12 students, including the
42 knowledge and skills required to understand what generative AI is, how it
43 works, its appropriate and age-appropriate uses, and how to use it ethi-
44 cally, securely, and transparently;

45 (2) Assessment guidelines to evaluate student understanding of genera-
46 tive AI concepts, ethics, and responsible use; and

47 (3) A professional development plan to build educator capacity in safe
48 and effective integration of generative AI technologies.

1 33-7006. PARENTAL AND COMMUNITY ENGAGEMENT. The state department of
2 education shall develop for parents and legal guardians a generative AI
3 guidance document to support transparency and public understanding of gen-
4 erative AI in public education.

5 33-7007. PROCUREMENT AND TECHNOLOGY REQUIREMENTS. (1) All generative
6 AI-related software, applications, and tools procured by local school dis-
7 tricts and public charter schools shall comply with state and federal data
8 privacy laws, including the family educational rights and privacy act, the
9 children's internet protection act, and the children's online privacy pro-
10 tection act. Vendors shall disclose whether products utilize machine learn-
11 ing, predictive analytics, or generative AI and shall provide assurances re-
12 garding data protection, algorithmic transparency, and responsible use.

13 (2) The state department of education may establish a list of approved
14 generative AI tools or develop model procurement guidelines for use by local
15 school districts and public charter schools.

16 33-7008. RULEMAKING AUTHORITY. The state board of education may pro-
17 mulgate rules, subject to legislative approval, to implement the provisions
18 of this chapter.

19 SECTION 2. An emergency existing therefor, which emergency is hereby
20 declared to exist, this act shall be in full force and effect on and after
21 July 1, 2026.